

Berkshire County Council Act 1971

CHAPTER viii

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Division of Act into Parts.
3. Interpretation.
4. The appointed day.

PART II

AMENITIES AND LAND

5. Compulsory acquisition of easements.
6. Agreements with developers.
7. Covenants or restrictions affecting certain land.
8. Enforcement of restrictive covenants relating to land acquired for open spaces.
9. Amendment of section 19 of Act of 1953.
10. Application to certain authorities of provisions of Part II.

PART III

HIGHWAYS AND STREETS

Section

11. Recovery of street works charges where owner unknown.
12. Extension of parish councils' powers to provide parking places.
13. Extension of power to provide public conveniences.
14. Power for rural district councils to contribute to cost of private street works.
15. Damage to obstruction lights, etc.
16. Oil pipes and manholes in streets.
17. Sale of food and articles on verges, etc.
18. Defacing of road surface, etc.

PART IV

FIRE PROTECTION

19. Oil-burning equipment.
20. Firemen's switches for luminous tube signs.
21. Building plans: access for fire brigade.
22. Provision of means of escape from fire in certain buildings.
23. Fire precautions in certain large buildings.
24. Parts of buildings used for storage of flammable substances.

PART V

FINANCE

25. Power to borrow.
26. Power to Council to raise money by issue of bills.
27. Power to Council to raise money by issue of bearer bonds.
28. Power to Council to raise money abroad.
29. Amendment of power to issue bonds.
30. Joint holders of bonds and mortgages.
31. Receipt in case of minors.
32. Power to make temporary loans.
33. Notice of alteration of rents without notice to quit.
34. Recovery of sums paid to officers, etc.
35. Compensation for injury to or death of officers.
36. Officers of Council acting as receivers, etc.
37. Extension of power to invest superannuation fund moneys.
38. Section 21 (3) of Act of 1937 not to limit foregoing powers.
39. Expenses of investment of superannuation fund.
40. Application to certain authorities of provisions of Part V.

PART VI

Section SUPERANNUATION

41. Interpretation of Part VI, etc.
42. Commencement of new superannuation provisions.
43. Benefits in certain cases of premature retirement.
44. Power to require designated sum to be paid to trustees.
45. Transfers of employment.
46. Application of the new superannuation provisions to other employing authorities.
47. Application of the new superannuation provisions to local authorities.
48. Transfer of certain sums from fund.
49. Exclusion of certain remuneration and service for superannuation purposes.
50. Extension of powers of Council to grant gratuities to widows and dependants of former employees.
51. Gratuities to non-teaching staff in voluntary schools.
52. Application to certain authorities of sections 48, 49 and 50.

PART VII

MISCELLANEOUS

53. Authorisation of appearance of Council's officers in legal proceedings.
54. Provisions as to motor vehicles let for hire.
55. As to use of computer equipment of Council.
56. Microfilming of documents.
57. Power to advertise facilities.
58. Research into matters concerning social conditions, etc.
59. Power to provide car parks for certain purposes.
60. Power to change titles of officers.
61. Recreational and other facilities for employees.
62. Disposal of lost and uncollected property.
63. Publication of bulletins, etc.
64. Prizes for allotment competitions.
65. Provision of life-saving apparatus.
66. Appointment of deputies.
67. Tipping of spoil and refuse.
68. Council to be a trust corporation.
69. Charges for registration of persons seeking exchange of houses.
70. Application to certain authorities of provisions of Part VII.

PART VIII

GENERAL

71. Local inquiries.
72. Restriction on right to prosecute.
73. Appeals.

Section

- 74. Protection of members and officers from personal liability.
- 75. Crown rights.
- 76. Arbitration.
- 77. For protection of certain statutory undertakers.
- 78. Application of general provisions of Act of 1936.
- 79. Saving for exchange control.
- 80. Costs of Act.

SCHEDULES:

Schedule 1—Setting out the trusts, powers and provisions upon, with and subject to which the designated sum is to be held in pursuance of a direction given by a contributor under section 44 (Power to require designated sum to be paid to trustees) of this Act.

Schedule 2—Sections of Act of 1936 applied—

Part I—Sections applied generally.

Part II—Sections applied to sections 19, 20, 21, 22, 23 and 67 of this Act.

ELIZABETH II



1971 CHAPTER viii

An Act to confer further powers on the Berkshire County Council and local authorities in the administrative county of Berkshire in relation to amenities, lands and highways and the local government, improvement, health and finances of the county; to make further provision for the superannuation of employees; and for other purposes.

[17th February 1971]

WHEREAS it is expedient that further and better provision should be made with reference to amenities, lands and highways and for the local government, improvement, health and finances of the administrative county of Berkshire and that the powers of the county council of that administrative county (hereinafter referred to as "the Council") and of the local authorities within that administrative county should be enlarged and extended as by this Act provided:

And whereas it is expedient to make further provision for the superannuation of officers and servants of the Council and local

authorities and of persons who contribute to the superannuation funds of the Council and local authorities and for the benefit of their dependants and to amend the enactments relating thereto:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Berkshire County Council Act 1971.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Amenities and land.

Part III.—Highways and streets.

Part IV.—Fire protection.

Part V.—Finance.

Part VI.—Superannuation.

Part VII.—Miscellaneous.

Part VIII.—General.

Interpretation. 3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 294 and 295 of the Act of 1959 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act, unless otherwise expressly enacted or unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

PART I
—cont.

“ the Act of 1933 ” means the Local Government Act, 1933; 1933 c. 51.

“ the Act of 1936 ” means the Public Health Act, 1936; 1936 c. 49.

“ the Act of 1937 ” means the Local Government Superannuation Act, 1937; 1937 c. 68.

“ the Act of 1953 ” means the Berkshire County Council Act, 1953; 1953 c. xli.

“ the Act of 1959 ” means the Highways Act, 1959; 1959 c. 25.

“ the Act of 1967 ” means the Road Traffic Regulation Act, 1967; 1967 c. 76.

“ the appointed day ” has the meaning assigned to that expression by section 4 (The appointed day) of this Act;

“ authorised security ” means any mortgage, stock, bond or other security which the Council are for the time being authorised to grant, create or issue, or upon or by means of which the Council are for the time being authorised to raise money;

“ building regulations ” has the same meaning as in section 4 of the Public Health Act, 1961; 1961 c. 64.

“ contravention ” includes a failure to comply and “ contravene ” shall be construed accordingly;

“ the Council ” means the county council of the county;

“ the county ” means the administrative county of Berkshire;

“ the county fund ” means the county fund of the county;

“ daily fine ” means a fine for each day on which an offence is continued after conviction thereof;

“ district ” means a borough or an urban or rural district in the county;

“ the fire authority ” means the Berkshire and Reading Fire Authority;

“ highway authority ” means—

(a) in the case of a trunk road, the Secretary of State or, with his consent, the authority who are for the time being acting as his agent under the Act of 1959 with respect to that trunk road;

(b) in the case of a county road in the county, except a claimed road, and in the case of any other highway for the time being maintained by the Council, the Council; and

(c) in the case of any other highway, the local authority for the district in which the highway is situate;

PART I
—cont.

1952 c. 55.

“ local authority ” means the council of a district;
 “ magistrates’ court ” has the same meaning as in the
 Magistrates’ Courts Act, 1952;

“ officer ” includes servant;

1969 c. 48.

“ operational land ” in relation to any statutory undertakers,
 means land which is used for the purpose of the carrying
 on of their undertaking and land in which an interest
 is held for that purpose, not being land which, in respect
 of its nature and situation, is comparable rather with
 land in general than with land which is used, or in which
 interests are held, for the purpose of the carrying on of
 statutory undertakings and, in relation to the Post Office,
 has the same meaning as in paragraph 93 (4) of Schedule 4
 to the Post Office Act, 1969;

“ parish council ” means the parish council of a rural parish
 in the county or where there is no parish council the
 parish meeting of such parish;

“ the railways board ” means the British Railways Board;

“ rural district ” means a rural district in the county;

“ rural district council ” means the council of a rural district;

“ the Secretary of State ” means the Secretary of State for
 the Environment;

“ statutory undertakers ” has the same meaning as in the
 Act of 1936;

1878 c. 76.

“ telegraphic line ” has the same meaning as in the Telegraph
 Act, 1878;

“ urban district ” means a borough or an urban district in
 the county;

“ voluntary organisation ” means any organisation not
 carried on for profit not being an organisation carried
 on by a public authority.

(3) Any reference in this Act to any enactment shall be construed
 as a reference to that enactment as applied, extended, amended or
 varied by or by virtue of any subsequent enactment, including
 this Act.

The appointed
day.

4.—(1) In this Act “ the appointed day ” means such day as
 may be fixed by resolution of a local authority subject to, and
 in accordance with, the provisions of this section.

(2) Different days may be fixed under this section for the
 purpose of different provisions of this Act.

(3) The local authority shall cause to be published in a local
 newspaper circulating in their district notice—

(a) of the passing of any such resolution and of the day
 fixed thereby; and

- (b) of the general effect of the provisions of this Act coming into operation as from that day;

PART I
—cont.

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of publication.

PART II

AMENITIES AND LAND

5.—(1) The Council, by means of an order made by the Council and submitted to and confirmed by the confirming authority, may be authorised to create in favour of the Council in, over or under any land which under any enactment the Council may be authorised to acquire compulsorily any easement or other right in, over or under or in relation to such land which, in the opinion of the confirming authority, is essential to the full enjoyment or use of any land or building owned or occupied, or intended to be acquired or occupied, by the Council for the purposes of any of their undertakings, powers or duties.

Compulsory
acquisition of
easements.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in, over or under or in relation to which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

(3) The Acquisition of Land (Authorisation Procedure) Act, 1946, shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the said Act of 1946 and as if—

- (a) the expression “compulsory purchase of land” in the said Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and

PART II
—cont.

- (b) paragraphs 9 and 10 of Schedule 1 to the said Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1) whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of the paragraph has an easement or other right which if it were land would be land to which the paragraph relates.

1965 c. 56.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within section 8 of the Compulsory Purchase Act, 1965.

(5) In this section the expression “confirming authority” means the authority having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Council.

Agreements
with
developers.

6.—(1) The Council and any person having an estate or interest in any land within the county may enter into an agreement which may provide for all or any of the following:—

- (a) determining the order in which development of that land shall be carried out as between the different parts of that land and as between the different parts of the development of any part of that land;
- (b) determining the time by which development of that land shall be completed or the times by which the parts of that development shall be completed;
- (c) providing that the estate or interest of that person in that land shall not be conveyed, leased or assigned except by way of mortgage or legal charge to any person unless the Council shall have first satisfied themselves that that person has or can command sufficient financial resources to carry out development of that land and to implement all the provisions of the agreement;
- (d) the dedication to the public of rights of way over that land or over a part or parts of any building or structure which is comprised in the development and the maintenance and cleansing of the public rights of way so dedicated including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated and the maintenance of any support of the public rights of way so dedicated;

(e) arrangements relating to the provision, maintenance or use of facilities for the parking of vehicles for or in connection with development of that land;

PART II
—cont.

(f) any other related or consequential matters.

(2) (a) An agreement entered into under the preceding subsection may contain positive and negative covenants and whether they be positive or negative and notwithstanding that they may not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee they shall, if registered in the local land charges register, be enforceable by the Council against the covenantor and all persons deriving title by, through or under the covenantor.

(b) In the event of the person who has entered into an agreement under the preceding subsection or any person deriving title by, through or under him failing to perform any of the positive covenants contained in the agreement, the Council may after giving not less than twenty-one days' notice of their intention so to do enter on the land and do the work in default and the expenses incurred by the Council in so doing shall be recoverable by them from the person in default.

(c) Except as may be expressly provided in the agreement, an agreement entered into under the preceding subsection shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

(3) The Council may take or acquire shares or other securities in any company incorporated in the United Kingdom with which an agreement is entered into under this section.

(4) In this section "development" has the same meaning as in section 12 of the Town and Country Planning Act, 1962.

1962 c. 38.

7. Where land owned by the Council (being land acquired by the Council to provide a site for a voluntary school) is conveyed by the Council to the trustees of a voluntary school in pursuance of the provisions of the Education Act, 1946, any covenants or restrictions affecting the use of such land as aforesaid shall be enforceable against the trustees or governors or managers of the voluntary school only to the extent that they were enforceable against the Council prior to the conveyance referred to in this section.

Covenants or restrictions affecting certain land.
1946 c. 50.

PART II
—cont.

Enforcement
of restrictive
covenants
relating to
land acquired
for open
spaces.

8.—(1) Where the Council have, either before or after the passing of this Act, contributed or agreed to contribute towards, or in connection with, the acquisition or utilisation by the council of any other administrative county or of any county borough, district or parish (whether or not in the county) or by any other public body (in this section referred to as an “authority”) or by any person or any trustees of land for the purpose of a public or private open space, recreation or pleasure ground, sports ground or playing fields, or public walk, or towards or in connection with the laying out or maintenance of such land, and such authority, person or trustees have or has, either before or after the passing of this Act, in consideration of such contribution, or of an agreement to make such contribution, entered into a covenant with the Council restrictive of the user of such land, the Council shall have power (in addition to any other rights or remedies under the instrument containing such covenant) to enforce such covenant against such authority, person or trustees and against the persons deriving title under them or him in the like manner and to the like extent as if the Council were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.

(2) Where an authority have, either before or after the passing of this Act contributed towards, or in connection with, the acquisition or use by the Council of land for the purpose of a public or private open space, recreation or pleasure ground, sports ground or playing fields, or public walk, or towards, or in connection with the laying out or maintenance of such land, and the Council have, either before or after the passing of this Act, in consideration of such contribution, or of an agreement to make such contribution, entered into a covenant with such authority restrictive of the user of such land, the authority shall have power (in addition to any other rights or remedies under the instrument containing such covenant) to enforce such covenant against the Council and the persons deriving title under them in the like manner and to the like extent as if the authority were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.

1925 c. 22.

(3) (a) For the purposes of section 15 of the Land Charges Act, 1925, any covenant referred to in this section shall be deemed to be a restriction on the user or mode of user of land or buildings enforceable by a local authority under a covenant or agreement made with them.

(b) This section shall not apply to a covenant contained in any instrument made before 27th November, 1969, unless the restrictions enforceable under such covenant were registered as local land charges within two years after that date.

(4) Any covenant to which this section applies shall continue to be enforceable notwithstanding that the land intended to be affected thereby may have passed to an authority acquiring the same by agreement under the Lands Clauses Acts, or any Act incorporating those Acts.

PART II
—cont.

(5) Nothing in this section shall deprive the Council or any authority, person or trustees of any right to enforce a covenant to which this section applies which they or he would have had if this section had not been enacted.

9. Subsection (1) of section 19 (Application of certain provisions of Part II to local authorities) of the Act of 1953 shall have effect as if for the words " Subject to the provisions of this Act a local authority may exercise the powers contained in the foregoing provisions of this Part of this Act " there were substituted the words " The provisions of this Part of this Act shall apply to a local authority ". Amendment of section 19 of Act of 1953

10.—(1) The provisions of this Part of this Act mentioned in subsection (2) of this section shall apply to a local authority, and for that purpose those provisions shall have effect as if for references therein to the Council there were substituted references to the local authority, and subject to any other necessary modifications. Application to certain authorities of provisions of Part II.

(2) The provisions hereinbefore referred to are—

Section 5 (Compulsory acquisition of easements);

Section 6 (Agreements with developers).

PART III

HIGHWAYS AND STREETS

11.—(1) Where any street works in the county have been completed by a street works authority but they are unable to recover the amount due from the owner of any premises or otherwise under the code of 1892 by reason of the fact that such owner is unknown and cannot, after diligent inquiry, made when the said amount becomes due and at reasonable intervals thereafter, be found, the street works authority may, at any time after the expiration of twelve years from the date when the said amount Recovery of street works charges where owner unknown.

PART III
—cont.

becomes due, apply to the county court, and that court may, on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with, make an order vesting the said premises in the street works authority absolutely, and thereupon the street works authority may appropriate the said premises subject to, and in accordance with, the provisions of section 163 of the Act of 1933, as if the said premises were land which was not required for the purpose for which it was acquired.

1949 c. 42.

(2) Where the county court makes an order under subsection (1) of this section the Lands Tribunal shall, for the purpose of determining the value of the said premises, nominate one of their members selected in accordance with subsection (6) of section 1 and section 3 of the Lands Tribunal Act, 1949, and the member nominated shall determine the same accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof, and the street works authority shall thereupon pay into court a sum equal to the amount of such valuation, after deduction of the amount of the final apportionment in respect of the said premises, with interest thereon for a period of six years at the rate of 5 per cent. per annum, or at such other rate as may have been fixed by order of the Secretary of State under section 212 of the Act of 1959 together with all costs and expenses reasonably incurred by the street works authority.

1965 c. 56.

(3) Any payment into court under subsection (2) of this section shall be made in accordance with section 25 of the Compulsory Purchase Act, 1965, and subsection (5) of section 9 of that Act shall apply to any such payment into court.

(4) The powers conferred by subsection (1) of this section shall be exercisable by the street works authority in addition to any existing rights, powers and remedies for the recovery of expenses and shall be exercisable by the street works authority in respect of all street works, whether completed before or after the passing of this Act.

(5) In this section “street works” and “street works authority” have the same respective meanings as in section 213 of the Act of 1959 and “code of 1892” has the same meaning as in section 173 of that Act.

Extension of
parish
councils’
powers to
provide
parking
places.

12.—(1) The powers of a parish council under section 46 of the Act of 1967 to provide parking places for bicycles and motor-cycles shall extend so as to authorise a parish council to provide

parking places for other vehicles (whether or not consisting of buildings) in the circumstances and subject to the conditions prescribed by that section and by section 47 of the said Act.

PART III
—*cont.*

(2) For the purpose of exercising the powers of the said section 46 as extended by the foregoing subsection the following provisions of the Act of 1967 shall apply to a parish council as they apply to a local authority, namely:—

subsections (5) and (8) of section 28; subsections (1) to (3), (5) to (7) and (9) of section 29; section 30; subsections (1) to (4), (5) and (6) of section 31; and section 96.

(3) The provisions of section 48 of the Act of 1967 shall apply to the exercise by a parish council of the powers of this section as they apply to such a council in the exercise of the powers of section 46 of that Act and section 49 of the Act shall have effect accordingly.

13.—(1) The provisions of subsection (2) of section 87 of the Act of 1936 shall extend so as to authorise the Council to provide public sanitary conveniences in, on or under any land which is adjacent to but which does not form part of a county road or a trunk road in the county, and the provisions of subsection (3) of that section shall apply accordingly:

Extension of
power to
provide public
conveniences.

Provided that the powers of this subsection shall not be exercised in relation to a trunk road or in relation to any land acquired by the Secretary of State in connection with a trunk road under subsection (5) or subsection (6) of section 214 of the Act of 1959, or under section 215 of that Act, without the consent of the Secretary of State.

(2) The Council may enter into an agreement—

- (a) with any person for the provision by him of any public sanitary conveniences which the Council have power to provide; and
- (b) with the owner and occupier of any such premises as are referred to in subsection (1) of section 89 of the Act of 1936 or the owner and occupier of any premises comprising a petroleum filling station as defined in the Petroleum (Consolidation) Act, 1928, for the provision by him, in addition to any sanitary conveniences provided for the use of persons employed at or frequenting such premises, of additional sanitary conveniences for the use of members of the public;

and any such agreement may contain such incidental and consequential provisions as appear to the Council to be necessary or

PART III
—cont.

expedient for the purposes of the agreement, including in particular but without prejudice to the generality of the foregoing, provision for—

- (i) a contribution, whether by way of a loan or otherwise, by the Council towards the reasonable expenses incurred by any person in providing and maintaining sanitary conveniences for the use of members of the public;
- (ii) the charges to be made to persons making use of any such conveniences, other than urinals;
- (iii) the regulation of the use of any such conveniences.

Power for rural district councils to contribute to cost of private street works.

14. A rural district council may at any time resolve to bear the whole or a portion of the expense of any street works in their district under the code of 1892, as defined in section 173 of the Act of 1959, and where a rural district council so resolve the liabilities of the owners of premises in respect of those expenses shall be treated as discharged, or as proportionately reduced, accordingly.

Damage to obstruction lights, etc.

1950 c. 39.

15. If a person, without lawful authority or excuse, takes down, alters or removes any fence or other guard erected, or extinguishes or removes any light placed, by any statutory undertakers in pursuance of the requirements of section 8 of the Public Utilities Street Works Act, 1950, when executing works in the county, he shall be guilty of an offence and shall be liable in respect thereof to a fine not exceeding one hundred pounds.

Oil pipes and manholes in streets.

16.—(1) The owner or occupier of any premises situated under, or abutting on part of, a street in any district may, with the consent of the highway authority, provide—

- (a) pipes under the street for conveying oil for use or storage to such premises; or
- (b) manholes in the street in connection with any such pipes.

1925 c. 22.

(2) In giving their consent under this section the highway authority may attach thereto such terms and conditions as they think fit, and such terms and conditions, and any conditions imposed by them under subsection (5) of this section, shall be binding on successive owners and occupiers of the premises and shall be treated as a local land charge for the purposes of the Land Charges Act, 1925:

1962 c. 37.

Provided that where any such terms and conditions or any conditions imposed under subsection (5) of this section are attached or imposed in relation to the provision of pipes or manholes under or in a trunk road, the highway authority shall, for the purposes of paragraph 1 of Schedule 5 to the Building Societies Act, 1962, be deemed to be a local authority.

(3) Any person aggrieved by the refusal of the highway authority to give a consent under subsection (1) of this section or by any term or condition imposed by the highway authority under subsection (2) or subsection (5) of this section may appeal to a magistrates' court.

(4) If any person carries out any works to provide pipes or manholes as aforesaid without the consent of the highway authority, or fails to comply with any term or condition of a highway authority imposed on him under subsection (2) or subsection (5) of this section, he shall, subject to any order made on appeal, but without prejudice to any other liability to which he may be subject, be liable to a fine not exceeding fifty pounds.

(5) (a) Before the highway authority determine to give any consent under this section, they shall give at least twenty-eight days' notice of the application therefor to any statutory undertakers who appear to them to be concerned, and on giving any such consent shall attach thereto such conditions as any such statutory undertakers may reasonably require for the protection of any apparatus belonging to, or used or maintained by, those statutory undertakers.

(b) As soon as may be after the highway authority have given a consent under this section they shall give notice thereof to any such statutory undertakers.

(6) (a) Nothing in this section shall authorise any person to alter, or require any alteration of, any telegraphic line belonging to or used by the Post Office, or any apparatus belonging to any statutory undertakers.

(b) In this subsection "alter" and "alteration" have the same meanings as in the Telegraph Act, 1878.

1878 c. 76.

(7) The Public Utilities Street Works Act, 1950, shall not apply to the provision of pipes or manholes under subsection (1) of this section.

(8) This section shall not apply to—

(a) any street belonging to or repairable by the railways board; or

(b) a pipe-line (as defined in section 65 of the Pipe-lines Act, 1962), being a pipe-line which may be placed in a street under the provisions of section 15 of the said Act of 1962 and in exercise of the powers given by that section; or

1962 c. 58.

PART III
—cont.

(c) the carrying out of any works in a street by statutory undertakers in the exercise of their statutory powers.

Sale of food
and articles
on verges,
etc.

17.—(1) No person (other than a person selling, offering or exposing for sale or depositing for sale any food, goods, provisions, articles or things at any market or fair for which a toll, stallage or rent is payable) shall use any shed, hut, shelter, booth, stall, shop or other erection, whether on wheels or not, or any vehicle or any container used, with or without a stall, on the verge of any road to which this section applies, or on any common land, unenclosed moorland or other unenclosed land of whatsoever description adjacent to, and within 15 yards of, a road to which this section applies, for the purpose of selling, offering, depositing or exposing for sale any food, goods, provisions, articles or things whatsoever, other than newspapers.

(2) If any person contravenes the provisions of this section, he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(3) This section applies to roads in the county of any of the following descriptions:—

(a) all trunk roads and roads which are classified as principal roads by the Secretary of State under the Local Government Act, 1966;

(b) any other county road, or part of a county road, in the county to which the highway authority may by order apply this section.

(4) (a) An order under subsection (3) of this section shall not be made except with the consent of the Secretary of State.

(b) Before making application for a consent under this subsection, the highway authority shall publish once at least in each of two successive weeks in a local newspaper circulating in the locality in which the road is situated a notice stating the general effect of the order, and stating that within a period specified in the notice (not being less than twenty-eight days from the first publication of the notice) any person may object to the application by sending notice of his objection and of the grounds thereof to the Secretary of State and by sending a copy thereof to the highway authority.

(c) If, before the expiration of the period specified in the notice, any objection to the application is received by the Secretary of State from any person appearing to him to be affected, the Secretary of State shall, before consenting to the order, cause a local inquiry to be held and consider the report of the person who held the inquiry.

(5) The Secretary of State may, in consenting to any order submitted to him for his consent under this section, consent to it in the form in which it was submitted to him or with such modifications as he thinks fit, which may include additions, exceptions or other modifications of any description; but where he proposes to consent to the order with modifications which appear to him substantially to affect the character of the order as submitted to him, he shall, before doing so, take such steps as appear to him to be sufficient and reasonably practicable for informing the highway authority in question and other persons likely to be concerned.

(6) Nothing in this section shall apply to—

- (a) any building erected or work constructed with the consent of the Secretary of State in pursuance of section 194 of the Law of Property Act, 1925, or of any 1925 c. 20. other statutory provision or any scheme made pursuant to a statute;
- (b) any shed, hut, shelter, booth, stall, shop or other erection or any vehicle or any container placed on private property by or with the consent of the owner of such property; or
- (c) the sale of food, goods, provisions, articles or things from a vehicle when in use solely for the purpose of itinerant trading with the occupants of premises adjoining any verge or land to which this section applies.

18.—(1) The highway authority may expunge or remove any Defacing picture, letter, sign or other mark painted or otherwise inscribed of road or affixed upon the surface of a highway or upon a tree, structure surface, etc. or works on or in a highway contrary to paragraph (cc) of subsection (1) of section 117 of the Act of 1959.

(2) The court by which a person is convicted of an offence under the said section 117 may, whether or not it imposes a fine, by order require him to pay to the highway authority any expenses incurred by them in re-erecting, restoring or reinstating a traffic sign, milestone or direction post pulled down, damaged or obliterated contrary to paragraph (c) of subsection (2) of the said section or incurred by them under subsection (1) of this section.

PART IV

FIRE PROTECTION

19.—(1) As from the appointed day any person intending to Oil-burning install or place oil-burning equipment in any building in a district, equipment.

PART IV
—cont.

whether the building is erected before or after the passing of this Act, or on any land in the district, shall give not less than fourteen days' notice to the local authority of his intention so to do.

(2) (a) The fire authority, if requested by the local authority to do so, may make byelaws for securing that, in relation to any oil-burning equipment so installed or placed after the coming into operation of the byelaws, proper arrangements will be made for preventing or reducing danger from fire.

(b) Byelaws made under this section may include provisions prescribing in connection with the installation or placing of oil-burning equipment in any such building or on any such land as aforesaid, the works, apparatus and fittings and fire-fighting appliances to be provided and the mode of arrangement and requirements as to maintenance of any such works, apparatus, fittings and appliances.

(c) Byelaws made under this section shall be subject to the provisions contained in subsections (2), (3), (4), (5), (6) and (7) of section 250 and in section 252 of the Act of 1933 and those sections shall for the purposes of this section be construed as if the fire authority were a local authority within the meaning of those sections and the reference to "the clerk of the authority" included a reference to the clerk of the fire authority.

(d) As respects byelaws made under this section, the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Secretary of State.

(3) (a) Any oil-burning equipment installed or placed in any building or on any land in a district in accordance with plans and specifications submitted to, and passed by, the local authority shall, for the purposes only of this section, be deemed to be approved by the local authority as complying with the appropriate specification for such equipment contained in byelaws made under this section in respect of all matters shown in the plans and specifications so passed.

(b) If the local authority do not, within two months from the submission of plans and specifications of any equipment under this subsection, notify the person by whom they were submitted of the rejection or passing of the said plans and specifications, they shall be deemed to have passed them.

(4) If, in relation to the installation or placing of any oil-burning equipment in any building or on any land in a district, the local authority are satisfied, after consultation with the fire authority, that proper arrangements will be made for preventing or reducing danger from fire, they may, on the application of the person proposing to install or place such equipment, approve the installation or placing of the equipment notwithstanding that it may not comply with the appropriate specification for such equipment contained in byelaws made under this section.

(5) (a) Any person aggrieved by the refusal of the local authority to approve the installation or placing of any equipment under subsection (4) of this section may within twenty-one days from the receipt of notification of the refusal appeal to the Secretary of State for the Home Department.

(b) Where an appeal is brought under this subsection the Secretary of State for the Home Department may dismiss or allow the appeal or may vary the decision of the local authority against which the appeal is made.

(c) The decision of the Secretary of State for the Home Department on any such appeal shall have effect as if it were a decision of the local authority given under the byelaws.

(6) (a) If any person installs oil-burning equipment in any building or on any land in a district without giving notice to the local authority in accordance with subsection (1) of this section he shall be liable to a fine not exceeding fifty pounds.

(b) If any person contravenes any byelaw made under subsection (2) of this section other than pursuant to an approval granted under subsection (4) of this section, he shall be liable to a fine not exceeding fifty pounds, and if—

(i) that person after conviction of the contravention; or

(ii) any other person after notice of the conviction has been served on him by the local authority;

uses the oil-burning equipment in contravention of that byelaw he shall be liable to a fine not exceeding ten pounds for each day on which he so uses it.

(7) Nothing in this section or any byelaws made thereunder shall apply to—

(a) any oil-burning equipment if the storage tank or tanks supplying or designed or adapted to supply oil to the boiler has or have a total capacity not exceeding 1,000 gallons; or

(b) the installation of any oil-burning equipment in any building in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force; or

(c) the installation of any oil-burning equipment by the railways board, the Central Electricity Generating Board, the Southern Electricity Board and the North Thames, the Southern and the South Western Gas Boards for the purposes of their respective undertakings:

Provided that the exemption conferred by virtue of this paragraph shall not extend—

(i) to a house; or

(ii) to a building used as offices or showrooms other than, in the case of the railways board, a building so used which forms part of a railway station.

PART IV

—*cont.*

1961 c. 34.

1963 c. 41.

(8) The provisions of any byelaw made under this section shall cease to apply in relation to any premises to which the Factories Act, 1961, or the Offices, Shops and Railway Premises Act, 1963, apply on the coming into force in relation to those premises of regulations made under either of those Acts and relating to the same subject-matter as this section.

(9) (a) In this section—

“apparatus and fittings” includes pipes and pipe fittings, taps, valves, pumps, gauges, vessels, fans and filters;

“boiler” means a boiler, furnace, heater, oven or similar plant;

“house” means a dwelling-house, whether a private dwelling-house or not, and includes a flat and maisonette;

“oil-burning equipment” means a boiler designed or adapted for the combustion of oil and includes the burner, the storage tanks and the apparatus, fittings, devices and catchpits, and any other equipment used for or in connection with the heating of the boiler;

“storage tank” means a tank, container or device designed or adapted for the purpose of supplying oil to a boiler.

(b) References in this section to the installation or placing of oil-burning equipment in any building or on any land shall be construed as including the installation or placing of oil-burning equipment which is partly in a building and partly on land outside the building.

Firemen's
switches for
luminous
tube signs.

20.—(1) This section applies to apparatus consisting of luminous tube signs designed to work at a voltage normally exceeding 650 volts, or other equipment so designed, and of the transformers required to raise the voltage so as to operate the signs or equipment, not being apparatus which is inside a building and is attended while in operation.

(2) As from the coming into operation of this section apparatus to which this section applies in the county shall be provided with a cut-off switch on the low-voltage side of the transformer, and the switch shall be so placed, and coloured or otherwise marked, as to satisfy such reasonable requirements as the fire authority may impose to secure that it shall be readily accessible to, and recognisable by, firemen.

(3) Not less than fourteen days before work is begun to install apparatus to which this section applies, the consumer shall give notice to the fire authority showing where the cut-off switch is to be placed and how it is to be coloured or otherwise marked.

(4) Where apparatus to which this section applies has been installed before the date of the coming into operation of this

section, the consumer shall, not less than fourteen days before that date, give notice to the fire authority—

PART IV
—cont.

- (a) in the case of apparatus already provided with a cut-off switch on the low-voltage side of the transformer, showing where the switch is placed and how it is coloured or otherwise marked;
- (b) in the case of apparatus not already provided with such a cut-off switch as aforesaid, showing where the switch is to be placed and how it is to be coloured or otherwise marked.

(5) Where notice has been given to the fire authority as required by subsection (3) or subsection (4) of this section, the proposed or, as the case may be, actual position, colouring or marking of the switch shall be deemed to satisfy the requirements of the fire authority unless, within ten days from the date of the service of the notice, if the notice is served under subsection (3) of this section, or within twenty-one days from the date of the service of the notice, if the notice is served under subsection (4) of this section, the fire authority have served on the consumer a counter-notice stating that their requirements are not satisfied.

(6) A cut-off switch which complies with the regulations of the Institution of Electrical Engineers shall for the purposes of this section be deemed to satisfy the requirements of the fire authority.

(7) A person aggrieved by a counter-notice served by the fire authority under subsection (5) of this section may appeal to a magistrates' court and the court, if it allows the appeal, shall order the cancellation of the counter-notice.

(8) The owner or the occupier of any premises where apparatus to which this section applies is installed which does not comply with subsection (2) of this section shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

(9) A person who fails to give notice as required by subsection (3) or subsection (4) of this section shall be liable to a fine not exceeding twenty pounds.

(10) The provisions of this section shall not affect the requirements of the Electricity Supply Regulations, 1937, or any regulations that may be made under section 60 of the Electricity Act, 1947.

1947 c. 54.

(11) This section shall not apply to apparatus installed on or in premises, or any part of premises, in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force:

Provided that where any luminous tube sign to which, but for this subsection, this section would apply is proposed to be fitted on or in any such premises, the owner or occupier thereof shall,

PART IV
—*cont.*

before such apparatus is fitted, give notice under subsection (3) of this section to the fire authority informing them of the position in which it is proposed to place the cut-off switch.

(12) This section shall come into operation in the county on 1st April, 1971.

(13) (a) The fire authority shall, as soon as may be after the passing of this Act, cause public notice to be given of the effect of the foregoing provisions of this section by advertisement in two or more newspapers circulating in the county, and otherwise in such manner as the fire authority think fit.

(b) In any proceedings it shall be presumed, unless the contrary is proved, that the provisions of this subsection have been complied with.

Building plans:
access for fire
brigade.

21.—(1) Where plans for the erection of a building are in accordance with building regulations deposited with a local authority, the local authority shall reject the plans if they show—

(a) that the building will not be provided with such means of access by the fire brigade as are necessary to enable a fire in the building to be fought effectively; or

(b) that the building will interfere with the means of access by the fire brigade to a neighbouring building to such an extent as to render those means insufficient to enable a fire in the neighbouring building to be fought effectively.

(2) Where plans for the extension of a building are in accordance with building regulations deposited with a local authority, the local authority shall reject the plans if they show—

(a) that the extension will be such as to affect the adequacy of the means of access by the fire brigade to the building and that the building as extended will not be provided with such means of access by the fire brigade as are necessary to enable a fire in the building to be fought effectively; or

(b) that the extension will interfere with the means of access by the fire brigade to a neighbouring building to such an extent as to render those means insufficient to enable a fire in the neighbouring building to be fought effectively.

(3) A local authority shall consult with the fire authority before rejecting any plans in accordance with the provisions of subsection (1) or (2) of this section.

(4) In this section “access by the fire brigade” means access by members of one or more fire brigades and their appliances, and references to a neighbouring building are, in relation to a neighbouring building for the erection, alteration or extension of which plans have been passed, references to the neighbouring building as erected, altered or extended in accordance with those plans.

(5) If a local authority reject the plans under the authority of this section, the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

PART IV
—cont.

(6) Any question arising under this section between a local authority and the person by whom, or on whose behalf, plans are deposited as to whether the local authority ought to pass the plans may, on the application of that person, be determined by a magistrates' court.

22.—(1) Section 60 of the Act of 1936 in its application to the district of any local authority in the county shall have effect as if—

Provision of
means of
escape from
fire in certain
buildings.

(a) in subsections (1) and (4) of that section the words "eighteen feet" were substituted for the words "twenty feet";

(b) in paragraph (a) of subsection (4) of that section the words "used in whole or in part as a flat or flats" were substituted for the words "let in flats";

(c) in paragraph (b) of subsection (4) of that section the words "boarding school" were omitted and the words "old persons' home" were inserted after the words "children's home"; and

(d) in paragraph (c) of subsection (4) of that section the word "school" were inserted after the word "shop" and the words "for persons employed on the premises" were omitted.

(2) (a) The local authority may by notice require the person having control of a building to which the said section 60 applies (other than a house used in whole or in part as a flat or flats) to keep unobstructed such passages and gangways as are specified in the notice and, if he fails to do so, he shall be liable to a fine not exceeding twenty pounds.

(b) A person served with a notice under this subsection may appeal to a magistrates' court on any of the following grounds:—

(i) that the requirement is not justified by the terms of this subsection;

(ii) that there has been some informality, defect or error in, or in connection with, the notice;

(iii) that the requirement of the notice is unreasonable in character or extent or is unnecessary.

23.—(1) No building of the warehouse class and no building used or intended to be used for the purpose of trade or manufacture shall be erected in the county of a cubic extent exceeding

Fire
precautions
in certain
large
buildings.

PART IV
—cont.

250,000 cubic feet or extended to exceed that extent unless (in accordance with plans and particulars submitted in accordance with building regulations and approved for the purposes of this section after consultation with the fire authority by the local authority of the district in which the building is to be erected or is situate)—

- (a) it is provided with all such means of escape therefrom in case of fire as may be reasonably required; and
- (b) if the local authority so require, it is fitted with automatic fire alarms and a fire extinguishing system or with either such alarms or such system to the satisfaction of the local authority after consultation with the fire authority:

Provided that—

1961 c. 34.

1963 c. 41.

- (i) nothing in paragraph (a) of this subsection shall apply to a factory to which section 40 of the Factories Act, 1961, applies, to buildings to which section 59 of the Act of 1936 applies or to premises to which the Offices, Shops and Railway Premises Act, 1963, applies;
- (ii) nothing in paragraph (b) of this subsection so far as it relates to the provision of fire alarms shall apply to a factory to which subsection (7) of section 48 of the said Act of 1961 applies or to premises to which section 34 of the said Act of 1963 applies, nor so far as it relates to the provision of a fire extinguishing system shall the said paragraph apply to a factory to which subsection (1) of section 51 of the said Act of 1961 applies or to premises to which the said Act of 1963 applies.

(2) (a) The person proposing to erect or cause to be erected or extend or cause to be extended any building to which subsection (1) of this section applies shall, when submitting plans and particulars in accordance with building regulations, deposit with the local authority particulars showing how it is proposed to comply with the requirements of paragraphs (a) and (b) of subsection (1) of this section.

(b) A local authority at any time within a period of two months after the deposit of the particulars, irrespective of any decision under building regulations—

- (i) may refuse to approve them; or
- (ii) may approve them subject to such conditions (if any) as, after consultation with the fire authority, they think fit.

(c) Where a local authority refuse to approve the particulars or approve them subject to conditions, they shall give to the person who deposited the particulars notice stating their reasons for refusal or for the imposition of conditions:

Provided that if within the period of two months mentioned in paragraph (b) of this subsection the local authority fail to give such notice, they shall be deemed to have approved the said particulars.

PART IV
—cont.

(3) (a) If any building to which the preceding subsections of this section are applicable is erected or extended in contravention of any of the requirements of paragraph (a) or (b) of subsection (1) of this section, the local authority, without prejudice to their rights to take proceedings for penalties in respect of the contravention, may by notice require the person erecting or causing to be erected the building or extension either to pull down and remove it or, if he so elects, to effect such alterations therein as may be necessary in order to comply with the said requirements.

(b) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

(4) All means of escape provided and any fire alarms and fire extinguishing systems fitted under the requirements of paragraph (a) or (b) of subsection (1) of this section shall be properly maintained and kept free from obstruction.

(5) (a) A person who erects or causes to be erected or extends or causes to be extended a building in contravention of any of the provisions of this section shall be guilty of an offence under this section.

(b) The occupier of any premises who fails to maintain the means of escape provided and any fire alarms and fire extinguishing systems fitted under the requirements of paragraph (a) or (b) of subsection (1) of this section, or to keep them free from obstruction, shall be guilty of an offence under this section.

(c) A person who commits an offence under this section shall on summary conviction be liable to a fine not exceeding fifty pounds and to a daily fine not exceeding ten pounds.

(6) Any person aggrieved by—

(a) a requirement of a local authority; or

(b) a refusal by a local authority to approve particulars; or

(c) a condition subject to which approval of particulars is given by a local authority;

under subsection (1) or (2) of this section may appeal to a magistrates' court and on any such appeal the court may confirm, reverse or vary such requirement, refusal or condition.

(7) Any officer of the fire authority who is duly authorised for the purpose shall, on producing, if so required, some duly

PART IV
—cont.

authenticated document showing his authority, have a right to enter at all reasonable times any building to which subsections (1) to (3) of this section apply—

- (a) for the purpose of ascertaining whether there is, or has been, in or in connection with the building any contravention of the provisions of this section;
- (b) for the purpose of ascertaining whether or not circumstances exist which would authorise a local authority to take any action under this section.

(8) The provisions of subsections (2), (3), (4) and (5) of section 287 of the Act of 1936 shall apply to entry into a building for the purposes of subsection (7) of this section as they apply to entry into premises for the purposes of subsection (1) of that section.

(9) Nothing in this section shall apply to any building—

- (a) in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force; or
- (b) exempted from the provisions of Part II of the Act of 1936 with respect to building regulations by paragraph (c) of section 71 of that Act.

(10) Any reference in this section to plans deposited in accordance with building regulations shall be construed as including a reference to any sections, specifications and written particulars deposited with the plans in accordance with the regulations or this section.

Parts of
buildings used
for storage of
flammable
substances.

24.—(1) This section applies to—

- (a) any building of which part (hereafter in this section referred to as “the storage part of the building”) is used, or intended to be used, for the storage for the purposes of sale or trade of any substance to which this section applies and part is used, or intended to be used, as a habitable room or a place in which any person works, if the part used, or intended to be used, as a habitable room or a place in which a person works communicates directly or indirectly with, or is adjacent to, or constructed at a higher level than, the storage part of the building;
- (b) any substance which is highly flammable:

Provided that this section shall not apply to any building in which no substance to which this section applies is stored other than—

- (i) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act, 1928, or the Celluloid and Cinematograph Film Act, 1922, apply; or

- (ii) any substance which does not, when tested by a method approved by the Secretary of State for the Home Department give off a flammable vapour at a temperature of less than 80 degrees Fahrenheit (27 degrees Centigrade) and which is stored in securely closed metal containers in good condition and containing not more than five gallons each; or
- (iii) any substance which does not, when tested by a method approved by the Secretary of State for the Home Department, give off a flammable vapour at a temperature of less than 80 degrees Fahrenheit (27 degrees Centigrade) and which is stored in separate glass or glazed earthenware vessels securely stoppered and the aggregate amount of all such substances stored in such manner would not, if the whole contents were in bulk, exceed twenty-five gallons.

(2) If the fire authority are of the opinion that the storage for the purposes of sale or trade of any substances to which this section applies in any part of a building to which this section applies in the county is—

- (a) in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building as a habitable room or as a place where any person works; or

- (b) in such manner as to be liable to cause fire or explosion;

they may by notice require the occupier of any part of the building to provide or fit (as the case may be) within such reasonable period as may be specified in the notice—

- (i) appropriate means of giving warning, in the case of fire, to persons occupying the building and for extinguishing fire and safeguards to prevent the spread of fire to or from the storage part of the building;
- (ii) means of ready escape in case of fire from the storage part of the building and any other part of the building, being a part comprising a habitable room or a place in which any person works if that other part communicates directly or indirectly with, or is adjacent to, or constructed at a higher level than, the storage part of the building;
- (iii) notices in or on the storage part of the building indicating the existence of danger from fire.

(3) The occupier of any building who—

- (a) by reason of a restriction affecting his interest in the building, is unable to execute works for the purpose of complying with a notice given by the fire authority under subsection (2) of this section; or

PART IV
—cont.

- (b) considers that the owner of the building, or any other person having an interest therein, should contribute towards the cost of the execution of works as aforesaid and of the maintenance of such works, and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with the notice or, as the case may be, to direct the owner of the building, or any other person who appears to the court to have an interest therein, to contribute towards the cost of such works as aforesaid and of the maintenance of such works, such an amount as appears to the court, in all the circumstances of the case, to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

(4) Upon compliance with a notice under subsection (2) of this section the fire authority shall forthwith issue to the person to whom the notice was given a certificate of such compliance.

(5) (a) If, after a certificate of compliance with a notice under subsection (2) of this section has been granted by the fire authority—

- (i) any material extension or material structural alteration of the building to which the certificate relates is intended to be made; or
- (ii) it is intended materially to increase the storage in the said building of any substance to which this section applies;

the occupier of any part of the building shall not less than twenty-one days before any such extension or alteration is made or any such storage is increased give notice of such intention to the fire authority who may serve a further notice varying any requirement made under subsection (2) of this section in respect of that building.

(b) Upon compliance being made with such varied requirements the fire authority shall amend the certificate or grant a new certificate in respect of the building, but if anything required to be provided in accordance with a further notice served under this subsection is not provided within such reasonable time as may be specified in the notice, the fire authority may cancel the certificate previously granted in respect of the building.

(6) All means of escape, fire alarms, means of extinguishing fire, safeguards to prevent the spread of fire and notices provided or fitted (as the case may be) under the requirements of subparagraphs (i), (ii) and (iii) of paragraph (b) of subsection (2) of this section shall be properly maintained and kept free from obstruction.

(7) Any officer of the fire authority who is duly authorised for the purpose shall, on producing, if so required, some duly authenticated document showing his authority, have a right to enter at all reasonable times any building to which this section applies in the county—

- (a) for the purpose of ascertaining whether there is, or has been, in or in connection with the building any contravention of the provisions of this section;
- (b) for the purpose of ascertaining whether or not circumstances exist which would authorise the fire authority to take any action under this section.

(8) The provisions of subsections (2), (3), (4) and (5) of section 287 of the Act of 1936 shall apply to entry into a building for the purposes of subsection (7) of this section as they apply to entry into premises for the purposes of subsection (1) of that section.

(9) (a) An officer of the fire authority may, in respect of any premises which he has entered in pursuance of the powers conferred by subsection (7) of this section, purchase and test samples of any substance stored on such premises for the purpose of sale or trade in order to ascertain whether or not such substance is a substance to which this section applies.

(b) The result of any test of a sample taken by an officer of the fire authority by virtue of this subsection shall not be admissible as evidence in any legal proceedings under this section, including an appeal under subsection (10) of this section, unless the following requirements have been complied with, that is to say, the officer shall forthwith after taking the sample notify the occupier of the building of his intention to have it tested, and shall there and then divide the sample into three parts, shall cause each part to be placed in a suitable container, which shall be sealed up and marked, and shall—

- (i) deliver one part to the occupier of the building;
- (ii) retain one part for future comparison; and
- (iii) if he thinks fit to have a test made, submit one part to be tested.

PART IV
—cont.

(10) (a) Any person aggrieved by a requirement of the fire authority under subsection (2) of this section, or by a variation of a requirement under subsection (5) of this section, may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement or variation is not justified by the terms of this section;
- (ii) that the requirement or variation is unreasonable in character or extent;
- (iii) that the period specified in the notice is not reasonably sufficient for the purpose of complying with the requirements in the notice.

(b) Any person aggrieved by the refusal of the fire authority to grant or amend a certificate under this section or by the cancellation of a certificate under subsection (5) of this section may appeal to a magistrates' court.

(11) If any person contravenes the provisions of this section or any requirement of the fire authority made thereunder he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(12) In this section "building" where used in relation to the storage of substances therein includes the curtilage of the building and "habitable room" includes a room or place to which the public resort.

1961 c. 34.
1963 c. 41.
1964 c. 26.
1967 c. 19.

(13) Nothing in this section shall apply to premises which are subject to the Factories Act, 1961, the Offices, Shops and Railway Premises Act, 1963, the Licensing Act, 1964, or the Private Places of Entertainment (Licensing) Act, 1967, or regulations made under those Acts.

PART V
FINANCE

Power to
borrow.

25.—(1) The Council may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the foregoing subsection within ten years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946. 1946 c. 58.

PART V
—cont.

26.—(1) In addition to the modes of borrowing prescribed by the Act of 1933, the Council may raise money—

Power to
Council to
raise money
by issue of
bills.

(a) for any purpose for which the Council are authorised to borrow;

(b) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “Berkshire County Council bills” and in this section referred to collectively as “bills” and separately as “a bill”), subject to and in accordance with the following provisions:—

(i) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:

(ii) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:

(iii) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:

(iv) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:

(v) The Council may make regulations providing for—

(A) the preparation and form and the mode of issue, payment and cancellation of bills;

(B) the issue of a new bill in lieu of one defaced, lost or destroyed;

(C) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;

(D) the giving of a proper discharge on the payment of a bill; and

(E) the amendment or revocation of any regulations previously made or deemed to have been made under this paragraph:

(vi) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the

PART V
—cont.

bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:

(vii) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—

(A) the sum of two million pounds; or

(B) one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year;

whichever is the greater:

(viii) Subject to the provisions of the last preceding paragraph the Council may renew a bill at maturity:

(ix) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills:

(2) (a) The Council may at the request of a local authority to which this subsection applies raise money by means of Berkshire County Council bills and shall lend such money to the local authority—

(i) for any purpose for which the local authority are authorised to borrow; or

(ii) in anticipation of the receipt of revenues for any purpose for which the revenues of the local authority may properly be applied:

Provided that the aggregate amount payable on bills issued under this subsection for the purpose of lending to the local authority current at any one time shall not (except by the amount payable on bills issued shortly before any other such bills fall due in order to pay off the last-mentioned bills) exceed one-fifth of the amount of so much of the gross rate income of that local authority for the then current financial year as is retained by the authority to meet liabilities falling to be discharged by the authority.

(b) The aggregate amount payable on bills issued under this subsection current at any time shall not be taken into account in calculating the aggregate amount referred to in paragraph (vii) of subsection (1) of this section.

(c) Any money lent to a local authority by the Council under this subsection shall be repaid to the Council by the local authority on or before the respective dates on which the bills by which the money was raised fall due for repayment.

(d) This subsection applies to any local authority whose gross rate income in the financial year current at the date of any proposed exercise of the powers of this subsection is not less than three million pounds.

PART V
—cont.

(3) In this section “gross rate income” means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act, 1967, “revenues” has the same meaning as in section 218 of the Act of 1933 and “signature” includes a facsimile of a signature by whatever process reproduced. 1967 c. 9.

27. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer. Power to Council to raise money by issue of bearer bonds.

28.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency. Power to Council to raise money abroad.

(2) (a) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury and subject to such conditions as the Treasury may impose.

(b) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted where necessary to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

29. For the purposes of section 7 (2) of, and paragraph 1 (c) of Schedule 1 to, the Local Government (Financial Provisions) Act, 1963— Amendment of power to issue bonds. 1963 c. 46.

(a) bonds issued by the Council under the said Act of 1963 to and held continuously by building societies and persons and bodies of such other classes as the Council may, with the consent of the Treasury, from time to time determine shall not be deemed to have been issued for a period of less than one year by reason only of the fact that the holder of such a bond has the right to claim premature repayment under a stress clause;

PART V
—cont.

- (b) a bond issued by the Council as aforesaid shall not be deemed to have been issued for a period of less than one year by reason only of the fact that it is issued on the condition that it may at the discretion of the Council be repaid upon the death of the holder or in any other case for the purpose of relieving hardship to the holder.

Joint holders
of bonds and
mortgages.

30. The Council shall not be required to register as joint holders of any authorised security any more than four persons.

Receipt in
case of
minors.

31. If any money is payable by the Council to any employee (other than wages or salary), or to any creditor, or to the holder of any authorised security, and the person entitled to such payment is a minor, the receipt of the guardian shall be a sufficient discharge to the Council.

Power to make
temporary
loans.

32.—(1) In addition to their other powers of investment, the Council may lend money for a period not exceeding twelve months to any person on the security of—

- (a) any stock, bonds, bills or other property in which trustees are by law authorised to invest trust money or a certificate to bearer relating to any such stock; or
- (b) Treasury bills or bills issued by any local authority in the United Kingdom; or
- (c) bills or bonds payable or guaranteed by the Treasury or secured upon the revenues of or local rates leviable by any local authority in the United Kingdom authorised to issue bills or bonds and in the securities of which trustees are by law authorised to invest; or
- (d) any securities transferable by delivery issued or guaranteed by the government of any overseas territory within the Commonwealth in the securities of which trustees are by law authorised to invest.

(2) The aggregate amount of money lent under this section which is outstanding at any one time shall not exceed five million pounds.

(3) The Council shall determine the percentage by which the value of the securities on which a loan is to be made under this section shall exceed the amount of the loan.

Notice of
alteration
of rents
without
notice to
quit.

33.—(1) Section 12 of the Prices and Incomes Act, 1968, shall—

- (a) apply to all houses within the meaning of the Housing (Financial Provisions) Act, 1958, belonging to the Council; and
- (b) as so applied, extend to a reduction as well as to an increase of rent.

1968 c. 42.
1958 c. 42.

(2) Accordingly the said section 12 shall, as it applies to the Council as a local authority within the meaning of that section, have effect as if in subsection (1)—

PART V
—cont.

- (a) the words “ on a weekly or other periodical tenancy ” were omitted;
- (b) after the word “ increased ” there were inserted the words “ or reduced ”; and
- (c) after the word “ increase ” there were inserted the words “ or reduction ”;

and as if in subsection (4) for the definition of “ local authority houses ” there were substituted the words “ ‘ local authority houses ’ are houses belonging to the local authority ” and after the word “ increase ” there were inserted the words “ or reduction ”.

34.—(1) Where the Council have paid in advance to any employee the amount of his emoluments and such employee dies before the expiration of the period in respect of which such payment is made the Council shall not be required to demand the return of such portion thereof not exceeding twenty-five pounds as the Council may determine.

Recovery of
sums paid to
officers, etc.

(2) In any case where the Council exercise the powers of the foregoing subsection they shall transfer from the county fund to the fund the amount which but for the exercise of those powers would have been returned to the fund.

(3) In this section—

“ employee ” means any officer of the Council or any officer whose salary or wages is or are payable by the Council and includes any former officer who is in receipt of a superannuation allowance or benefit payable out of the superannuation fund maintained by the Council;

“ emoluments ” means in relation to an officer his salary or wages (as the case may be) and in relation to a former officer in receipt of a superannuation allowance or benefit the amount of that allowance or benefit; and

“ the fund ” means the superannuation fund maintained by the Council under Part I of the Act of 1937.

35.—(1) The Council may pay compensation—

- (a) to any of their officers who sustains an injury in the course of his employment; or

Compensation
for injury to
or death of
officers.

PART V
—cont.

(b) to a dependant of any of their officers who, in the course of his employment, dies or sustains an injury resulting in death.

(2) Any compensation payable under this section may be paid either—

(a) by way of a lump sum; or

(b) by way of periodical payments of such amounts and payable at such times and for such periods as the Council may from time to time determine having regard to all the circumstances of the case.

(3) The payment of compensation under this section shall not affect any right or claim to damages or compensation which an officer of the Council or his dependant may have against any person other than the Council or, except so far as may be agreed when the compensation is granted, against the Council.

Officers of
Council acting
as receivers,
etc.
1959 c. 72.

36.—(1) The Council may pay to any of their officers who act in any of the following capacities:—

(a) as the receiver appointed by an order made under Part VIII of the Mental Health Act, 1959;

(b) as the administrator of the estate of a deceased person acting by virtue of a grant made to him as the nominee of the Council;

(c) as a surety to a bond required by law from an officer acting in accordance with paragraph (a) of this subsection;

the amount of any sum forfeited by him to the Crown or the principal probate registrar or the amount of any payment which he is liable to make by reason of his acting in the course of his duties as an officer of the Council in any such capacity as aforesaid.

(2) The Council may pay the amount of any premiums upon an insurance policy indemnifying an officer acting in any of the capacities mentioned in subsection (1) of this section against any act, neglect or default whether his own or that of any other person occurring in the course of the receivership or administration.

(3) Any payments which the Council have power to make under the provisions of subsection (1) of this section and any of the risks referred to in subsection (2) of this section may be specified by the Council as specified risks in accordance with section 146 (General insurance fund) of the Act of 1953 and that section shall be construed accordingly.

37.—(1) In its application to the investment by the Council under subsection (3) of section 21 of the Act of 1937 of any moneys forming part of but not for the time being required to meet payments out of the superannuation fund maintained by the Council under that Act, the Trustee Investments Act, 1961, shall have effect as if—

PART V
—cont.

Extension of
power to
invest super-
annuation
fund
moneys.

1961 c. 62.

- (a) for paragraphs 3 and 4 of Part II of Schedule 1 to that Act there were substituted the following paragraphs:—

“ 3. In fixed-interest securities issued by any public, municipal or local authority, or any publicly controlled or nationalised industry or undertaking, whether established within or outside the United Kingdom.

4. In fixed-interest securities issued by the government of any territory outside the United Kingdom.”;

- (b) in paragraph 3 of Part III of the said Schedule 1 there were added the words “ or in any units or other shares of investments of a property unit trust scheme whether or not there may be in force relating to such scheme such an order as is referred to in this paragraph ”;

- (c) the following paragraph were added at the end of Part III of the said Schedule 1:—

“ 4. In any securities issued in any of the scheduled territories within the meaning of section 1 of the Exchange Control Act, 1947, or in Canada, the United States of America, Japan, the Netherlands Antilles, or in any of the following countries, namely, Austria, Belgium, Denmark, France, Holland, Italy, Luxembourg, Norway, Portugal, Spain, Sweden, Switzerland and Western Germany.”;

- (d) the following paragraph were inserted after paragraph 2 of Part IV of the said Schedule 1:—

“ 2A. The securities mentioned in paragraph 4 of Part III of this schedule do not include shares or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue).”;

- (e) paragraph 3 of Part IV of the said Schedule 1 were omitted.

(2) Paragraph 1 and sub-paragraph (a) of paragraph 2 of Part IV of the said Schedule 1 shall not apply in relation to any investment by the Council which is authorised by virtue of the provisions of the foregoing subsection.

PART V
—cont.

(3) Notwithstanding anything in the said Act of 1961, the Council may invest any moneys referred to in subsection (1) of this section in any manner specified in Part III of Schedule 1 to the said Act of 1961 and may also from time to time vary any such investments:

Provided that no such moneys as aforesaid shall be so invested at any time when the value of all the investments made in the manner specified in Part III of the said schedule equals or exceeds three-quarters of the total value of the assets of the said superannuation fund.

(4) For the purposes of subsection (3) of this section the value of any investment of moneys forming part of the said superannuation fund shall be treated as being the value of the investment at the time at which it was made.

Section 21 (3) of Act of 1937 not to limit foregoing powers.

38. The provisions of the foregoing section shall have effect notwithstanding anything in subsection (3) of section 21 of the Act of 1937.

Expenses of investment of superannuation fund.

39. All costs, charges and expenses incurred by the Council in investing moneys forming part of the superannuation fund maintained by them, or otherwise in relation thereto, shall be paid by the Council out of that fund.

Application to certain authorities of provisions of Part V.

40.—(1) The provisions of this Part of this Act mentioned in subsection (2) of this section shall apply to a local authority and to a joint committee of local authorities established under section 2 of the Act of 1937, and for that purpose those provisions shall have effect as if for references therein to the Council there were substituted in the case of a local authority references to the local authority and in the case of any such joint committee references to that committee and subject in both cases to any other necessary modifications.

(2) The provisions hereinbefore referred to are the following:—

Section 25 (Power to borrow) except paragraph (b) of subsection (1);

Section 29 (Amendment of power to issue bonds);

Section 30 (Joint holders of bonds and mortgages);

Section 31 (Receipt in case of minors);

Section 33 (Notice of alteration of rents without notice to quit);

Section 34 (Recovery of sums paid to officers, etc.);

Section 35 (Compensation for injury to or death of officers).

PART VI

SUPERANNUATION

41.—(1) In this Part of this Act except as otherwise expressly provided or unless the context otherwise requires words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings and—

“ contributor ” means a contributor to the fund as respects whom the Council are the employing authority;

“ death grant ” and “ transfer value ” have in relation to a contributor the meanings assigned to them respectively by the Regulations of 1954;

“ the fund ” means the superannuation fund maintained by the Council under Part I of the Act of 1937;

“ the principal Acts ” means the Local Government Superannuation Acts, 1937 to 1953;

“ the Regulations of 1954 ” means the Local Government Superannuation (Benefits) Regulations, 1954;

“ return of contributions ” in relation to a person who has ceased to be a contributor includes any sum paid to or in respect of him by way of interest on the amount of the contributions returned to him;

“ superannuation benefit ” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

(2) In sections 42 to 47 of this Act “ the new superannuation provisions ” means those sections, and this section.

(3) Without prejudice to the provisions of section 44 (Power to require designated sum to be paid to trustees), section 45 (Transfers of employment), section 46 (Application of the new superannuation provisions to other employing authorities) and section 47 (Application of the new superannuation provisions to local authorities) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the date of the coming into force of the new superannuation provisions, subject to the extensions, modifications and applications of the said Acts and regulations contained in the new superannuation provisions.

42. The new superannuation provisions shall come into force on 1st April, 1971.

Commence-
ment of new
super-
annuation
provisions.

PART VI
—cont.

Benefits in
certain cases
of premature
retirement.

43.—(1) Where, after the coming into force of the new superannuation provisions, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated in the interests of efficiency before he has attained the age of sixty-five years, he shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Provided that this subsection shall not apply to a contributor if not later than one month after ceasing to hold his employment he notifies the Council in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of the new superannuation provisions, a contributor who has attained the age of fifty-five years and completed twenty-five years' service, but has not attained pensionable age, terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

- (i) where a person has become entitled to a superannuation benefit by virtue of this subsection he may, by notice given to the Council in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection and any rights to which he is entitled thereunder shall cease to apply in relation to him as from the date on which such notice is given;
- (ii) unless the Council otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person, who has become entitled to a superannuation benefit by virtue of subsection (2) of this section, dies before any payment on account of such benefit has been made to him, as from the date of his death the like benefits shall be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of "service" in subsection (1) of section 40 of the Act of 1937 whether or not any payment has been made to him on account thereof.

(5) For the purposes of section 16 of the Local Government Superannuation Act, 1953, and of any rules made thereunder a person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

PART VI
—cont.

1953 c. 25.

(6) In this section “ pensionable age ” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having otherwise than under this section attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954 as the case may be.

44.—(1) A contributor may at any time by notice in writing to the Council, given in such form as the Council may approve, direct that the provisions of this section shall apply to the amount (if any) which would otherwise be payable to his estate by way of death grant or by way of return of contributions to the fund, and that any such amount (hereafter in this section and in Schedule 1 to this Act referred to as “ the designated sum ”) instead of being paid to his estate shall be paid to such responsible persons (not being less than two nor more than four in number and hereafter in this section and in the said Schedule 1 referred to as “ the trustees ”) as shall be appointed for that purpose by the Council, to be held upon the trusts and with and subject to the powers and provisions in force under the said Schedule 1 at the date of such direction.

Power to
require
designated
sum to be
paid to
trustees.

(2) Any direction given in accordance with this section shall be effective and the designated sum shall accordingly be paid to the trustees and shall be held by them upon the trusts and with and subject to the powers and provisions in force under the said Schedule 1 at the date of such direction.

(3) The trusts, powers and provisions set out in the said Schedule 1 may from time to time be varied by resolution of the Council, but so that the trusts, powers and provisions as so varied shall only apply in relation to directions received by the Council after the making of such variations.

(4) Any direction given by a contributor under this section shall be irrevocable and binding on such contributor and his estate and all persons interested therein.

PART VI
—cont.

(5) In this section and in the said Schedule 1, “contributor” includes any person who on or after the date of the coming into force of the new superannuation provisions is a contributor to the fund, and “former contributor” shall be construed accordingly.

Transfers of
employment.

45.—(1) The Council may, in accordance with the provisions of a scheme made by them for the purposes of this section—

(a) as respects any contributor who ceases or has ceased to hold employment under the Council in order to enter an employment (in this paragraph referred to as “the new employment”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment under the Council:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment under the Council from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts and the regulations made thereunder as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Secretary of State and the Secretary of State may approve any such scheme either with or without modifications after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

PART VI
—cont.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in force, may make any amendments or modifications of that superannuation scheme that may be desirable to facilitate the operation of any scheme made by the Council under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in subparagraph (i) of paragraph (a) of subsection (1) of this section or to such payment by way of a transfer value or otherwise as is referred to in paragraph (b) of that subsection.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act, 1948, or 1948 c. 33. by virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

46.—(1) An authority to whom this section applies may by resolution adopt all or any of the foregoing sections of the new superannuation provisions and Schedule 1 to this Act as from such date not being earlier than 1st April, 1971, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to the authority as if—

Application of the new superannuation provisions to other employing authorities.

(a) any reference therein to a contributor was a reference to a contributor to the fund as respects whom the authority are the employing authority;

(b) any reference to the Council in section 43, or paragraphs (a) and (b) of subsection (1) of section 45 of this Act was a reference to the authority.

(2) Where in pursuance of the foregoing subsection any provisions are adopted by an authority to whom this section applies as from a date later than 1st April, 1971, then any reference in those provisions to 1st April, 1971, or to the date of the coming into force of the new superannuation provisions shall be construed in relation to the authority as a reference to such later date.

(3) This section applies to—

(i) a local authority which does not maintain a superannuation fund under Part I of the Act of 1937;

PART VI
—cont.

1953 c. 25.

- (ii) the Berkshire Magistrates' Courts Committee;
- (iii) the Berkshire Probation and After-Care Committee;
- (iv) any organisation, undertaking or body in respect of which there is for the time being in force an admission agreement with the Council pursuant to section 15 of the Local Government Superannuation Act, 1953;
- (v) any other employing authority in relation to which the fund is the appropriate superannuation fund within the meaning of paragraph (d) of subsection (3) of section 1 of the Act of 1937.

Application
of the new
super-
annuation
provisions
to local
authorities.

47.—(1) Where a local authority or a combination of local authorities maintains a superannuation fund under Part I of the Act of 1937 any such local authority may by resolution adopt all or any of the foregoing sections of the new superannuation provisions and Schedule 1 to this Act, as from such date, not being earlier than 1st April, 1971, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to that local authority as if—

- (a) any reference therein to the Council was a reference to that local authority;
- (b) any reference therein to a contributor was a reference to a contributor to the superannuation fund maintained by that local authority or combination of local authorities under Part I of the Act of 1937 and (except in section 44 (Power to require designated sum to be paid to trustees) of and Schedule 1 to this Act) as respects whom that local authority are the employing authority; and
- (c) any reference therein to the fund was a reference to the superannuation fund maintained by that local authority or combination of local authorities under Part I of the Act of 1937.

(2) If any such local authority as is referred to in subsection (1) of this section adopts all or any of the foregoing sections of the new superannuation provisions and Schedule 1 to this Act, any other employing authority in relation to which that local authority or combination of local authorities are the appropriate administering authority may by resolution adopt all or any of the foregoing sections of the new superannuation provisions and Schedule 1 to this Act as from such date as may be specified in such resolution and where any provisions are so adopted any reference therein to a contributor shall be a reference to a contributor to the superannuation fund maintained by the local authority or combination of local authorities in relation to which such employing authority are the employing authority.

48.—(1) If a contributor is dismissed or resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct, the Council may transfer from the fund to the county fund an amount not exceeding the whole, or any part, of any contributions not returned to him or paid to his wife or family under subsection (4) of section 10 of the Act of 1937, or the amount of loss suffered by the Council in consequence of the employee's offence or misconduct whichever is the less.

PART VI
—cont.

Transfer of
certain sums
from fund.

(2) If a contributory employee of an employing authority whose employees participate in the benefits of the fund is dismissed, resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct by reason of which the employing authority have suffered direct financial loss, the Council shall, on demand from the employing authority, pay to them out of such fund an amount equal to so much of the employee's contributions to the fund as the employing authority have not directed to be returned to the employee or paid to his wife or family, or the amount of such loss suffered by the employing authority in consequence of his offence or misconduct, whichever is the less:

Provided that—

- (a) where a payment in lieu of contributions falls to be made in respect of the employee under the National Insurance Act, 1965, the Council shall not under this subsection be required to pay to the employing authority so much of the employee's contributions as amounts to one-half of such payment in lieu of contributions; 1965 c. 51.
- (b) the Council shall not be required to pay to the employing authority so much of the employee's contributions as relates to any period of previous service, unless the employing authority have directed that all rights enjoyed by or in respect of him with respect to that period of service, being rights under Part I of the Act of 1937 or under the Local Government Superannuation Act, 1953, or any regulations made thereunder, shall be forfeited. 1953 c. 25.

49.—(1) Subject to the provisions of subsection (4) of this section, subsection (2) of this section applies to employees—

Exclusion of
certain
remuneration
and service
for super-
annuation
purposes.

- (a) who are contributory employees; or
- (b) who are employed in reckonable service within the meaning of the Teachers' Superannuation Act, 1967; or
- (c) who are firemen participating in the Firemen's Pension Scheme; or 1967 c.12.

PART VI
—cont.

(d) who by virtue of the provisions of rule 3 of the Superannuation (Policy and Local Government Schemes) Interchange Rules, 1948 and 1955, are not subject to the provisions of the principal Acts;

and who are employed whole-time by the Council, a local authority, a magistrates' courts committee, a probation and after-care committee, the managers or governors of a voluntary school, a local valuation panel or any voluntary organisation, undertakers or other body approved by the Secretary of State and who participate in the benefits of the fund.

(2) The salary, wages, fees and other payments paid or made (whether before or after the passing of this Act) to an employee to whom this subsection applies in respect of any part-time employment (not being employment the duties of which may be performed during the hours which such employee is normally required to devote to his ordinary whole-time employment) by the Council or any other authority or body the employees of which participate in the benefits of the fund—

- (a) as an instructor or other employee performing duties at, or for the purposes of, an evening institute or for the purposes of evening classes; or
- (b) as a warden of, or other employee performing duties at, or for the purposes of, a youth centre; or
- (c) as a civil defence instructor; or
- (d) in any other capacity for the performance of duties which are not duties which he may be called upon to perform in his ordinary whole-time employment;

shall not be remuneration within the meaning of the principal Acts or of any other enactment affecting the fund, and the service of any such contributory employee in any such part-time employment shall not be reckoned as service for any of the purposes of those Acts.

(3) Where, before the passing of this Act, any person to whom subsection (2) of this section applies has paid any contribution or contributions to the fund which would not have been so paid if this section had been in force when such contribution or contributions were made, the Council shall repay to such person a sum equal to the amount of such contribution or contributions, together with compound interest thereon calculated to the date of repayment at the rate of three pounds per centum per annum with half-yearly rests.

(4) Subsection (2) of this section shall not apply to any such person as is referred to in subsection (3) of this section unless within six months after the passing of this Act he gives notice in

writing to the Council that the said subsection (2) is to apply to him, whereupon that subsection shall apply to him as if this Act had come into force on the date of the receipt by the Council of such notice.

PART VI
—cont.

50.—(1) Section 18 of the Local Government Superannuation Act, 1953, in its application to the county shall have effect as if—

Extension of powers of Council to grant gratuities to widows and dependants of former employees.

(i) for the expression “ to the widow or any other dependant ” in subsections (1) and (2) there were substituted the words “ to a dependant ”;

(ii) after sub-paragraph (c) of subsection (1) there were inserted the following new paragraph:—

“ (d) partly by way of an annuity for the benefit of the widow and partly by way of periodical payments for the benefit of such of the children of the deceased employee who shall for the time being be under the age of twenty-one years:

1953 c. 25.

Provided that the aggregate of the capital value of such annuity and of such periodical payments shall not exceed the amount aforesaid ”.

(2) Subsection (1) of the said section 18 (as amended by the last foregoing subsection) shall apply to a dependant of a former employee of the Council who dies within one year after ceasing to be in their employment as it applies to a dependant of an employee who dies whilst in their employment:

Provided that no gratuity shall be granted under this subsection to a dependant of a former employee to whom a gratuity has been granted under subsection (1) of the said section 18.

(3) For the purposes of the said section 18 in its application to the county a person employed as a teacher in an aided school in the county shall be deemed to be employed by the Council.

51. For the purposes of section 18 of the Local Government Superannuation Act, 1953, as applied to the Council, a person employed in a voluntary school in the county, otherwise than as a teacher, shall be deemed to be employed by the Council and the Council may grant to or in respect of any such person a gratuity in accordance with the provisions of the said section 18 as amended by the last foregoing section.

Gratuities to non-teaching staff in voluntary schools.

52.—(1) The provisions of sections 48 (Transfer of certain sums from fund), 49 (Exclusion of certain remuneration and service for superannuation purposes) and 50 (Extension of powers of Council to grant gratuities to widows and dependants of former employees) of this Act shall apply to a local authority and to a joint committee of local authorities established under section 2 of the Act of 1937 as they apply to the Council and for

Application to certain authorities of sections 48, 49 and 50

PART VI
—cont.

that purpose those provisions shall have effect as if for references therein to the Council and to the county there were substituted in the case of a local authority references to the local authority and to their district respectively and in the case of any such joint committee references to that committee and to the districts of the constituent authorities respectively and subject in both cases to any other necessary modifications.

(2) The provisions of section 50 of this Act shall also apply to the Berkshire Magistrates' Courts Committee and the Berkshire Probation and After-Care Committee as they apply to the Council and for that purpose those provisions shall have effect as if the reference in subsection (2) to an employee of the Council were a reference to an employee of either of the said committees.

PART VII

MISCELLANEOUS

Authorisation
of appearance
of Council's
officers in
legal
proceedings.

Provisions as
to motor
vehicles let
for hire.

1847 c. 89.

1875 c. 55.

53. A resolution of the Council under section 277 of the Act of 1933 may refer either to an officer by name or to the holder or holders for the time being of the office or offices stated therein.

54.—(1) The provisions of the Town Police Clauses Act, 1847, and of section 171 of the Public Health Act, 1875, shall extend to empower the council of a district to which this section applies to make byelaws for declaring that to the extent determined by such byelaws those provisions and the byelaws of such council in force with respect to hackney carriages shall apply to any motor vehicle, notwithstanding that it is not a hackney carriage, which is offered or let for hire with the services of a driver and to such drivers:

Provided that—

(a) this section shall not apply to any such vehicle which is kept by any company, firm or person in connection with any business carried on by such company, firm or person as funeral directors or owners of funeral vehicles available for hire and used wholly or mainly in connection with such business or is kept and used ordinarily for the purpose of being let on hire by the day or for longer periods of hire or to a public service vehicle as defined in section 117 of the Road Traffic Act, 1960, or to any vehicle belonging to or used by the railways board for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises or to the drivers or conductors of such vehicles;

(b) nothing in this section shall empower the council of a district to fix the site of the stand or starting place of any motor vehicle standing or plying for hire in

1960 c. 16.

any railway station or railway premises or in any yard belonging to the railways board except with the consent of that board.

PART VII
—cont.

(2) This section applies to an urban district and to a rural district, or part of a rural district, in relation to which an order under section 13 of the Act of 1936 is for the time being in force.

55.—(1) The Council may provide services and facilities for the processing of data by computer or by any other equipment of the Council which the Council may possess for any person and the Council may make such charges as may be agreed for the provision of those services and facilities. As to use of computer equipment of Council.

(2) Information obtained by any employee of the Council in the course of the provision of such services or facilities shall not without the consent of the person from whom it was obtained be disclosed by that employee except for the purpose of performing his duties in relation to those services and facilities or in such cases as may be required by law.

56.—(1) The Council may make and retain microfilm recordings of documents of the Council. Microfilming of documents.

(2) Notwithstanding anything contained in any enactment, the Council may destroy any documents of the Council other than minute books, of which they have made and retained microfilm recordings:

Provided that—

(a) the Council shall not under this section destroy records deposited with them under the Public Records Act, 1958, or acquired or accepted by them under section 2 of the Local Government (Records) Act, 1962; 1958 c. 51.
1962 c. 56.

(b) the Council shall afford a right of access for the public to a microfilm recording of a document which has been destroyed in pursuance of this section equal to the right of access, if any, of the public to the document so destroyed.

(3) An enlargement of a microfilm recording of a document made in pursuance of this section shall be deemed for all purposes to be a copy of that document.

(4) Notwithstanding anything contained in any enactment or any rule of law an enlargement of a microfilm recording of a document which has been destroyed in pursuance of this section shall be receivable in evidence for any purpose for which the document would have been receivable in any proceedings in any court in England or Wales if the clerk certifies that—

(a) the document has been destroyed; and

PART VII
—cont.

(b) a microfilm recording of the document has been made; and

(c) the enlargement is an enlargement of that microfilm recording.

(5) In this section unless the context otherwise requires—

(a) “document” means the whole or part of a register, book, map, plan or other document and includes a notice, licence, certificate, scheme or order made, passed or granted by the Council or any committee of the Council;

(b) “microfilm recording” means a reproduction of a document on film which is a product of photography or any process akin to photography and is in general beyond legibility with the naked eye.

Power to
advertise
facilities.

57. The Council may advertise in any manner which they may think fit—

(a) the facilities and amenities afforded by the county for industry or as a tourist centre, place of historical or cultural interest or holiday resort; or

(b) the institutions provided by them under the Public Libraries and Museums Act, 1964;

1964 c. 75.

and for that purpose may—

(i) cause to be published and may sell or dispose of bulletins, journals and leaflets and documents of historical or literary interest having a local connection;

(ii) combine with any other organisation, company or person, and with any local authority authorised in that behalf; and

(iii) expend a sum which shall not in any financial year exceed the equivalent of the product of a new penny rate levied in the county as estimated for the purpose of section 12 of the General Rate Act, 1967.

1967 c. 9.

Research into
matters
concerning
social
conditions,
etc.

58. The Council may undertake investigations and research into matters affecting the county relating to—

(a) social or economic conditions; or

(b) health or hygiene;

and may contribute by grants or otherwise towards the cost of similar investigations and research undertaken by other bodies or persons.

Power to
provide car
parks for
certain
purposes.

59. The Council may provide parking places for vehicles used by members, officers or servants of the Council or other

persons using the Shire Hall and law courts and other halls, offices and buildings provided and maintained by the Council for or in connection with the discharge of their functions and may adapt and use for that purpose any land acquired by them under this section.

PART VII
—cont.

60.—(1) Notwithstanding anything in Part IV of the Act of 1933, or in any other enactment, the Council may from time to time by resolution determine that the office, style or title of any officer of the Council shall be that specified in the resolution instead of that specified in the Act of 1933 or in any other enactment and any thing done by an officer as holding the office, or in the style or title specified in the resolution, shall be valid and effectual for all purposes as it would have been had it been done by the officer in the office and holding the style or title specified in the Act of 1933.

Power to
change titles
of officers.

(2) As from the date of the passing of any resolution by the Council pursuant to subsection (1) of this section, any reference (whether specific or general) in any enactment or document to the office or title of an officer to whom the resolution relates shall be construed as if the office or title specified in the resolution were substituted for the office or title specified in that enactment or document.

61.—(1) The Council may provide and maintain or contribute to the cost of providing and maintaining recreational, social and welfare facilities for their employees.

Recreational
and other
facilities for
employees.

(2) For the purposes aforesaid, the Council may—

- (a) erect or maintain buildings;
- (b) make such charges as they think fit for the use of facilities provided under this section;
- (c) make regulations for the management of such premises.

(3) No power conferred upon the Council by this section shall be exercised in such a manner—

- (a) as to be at variance with any trust subject to which any land or building is held, managed or controlled by the Council without an order of the High Court or of the Charity Commissioners, or of the Secretary of State for Education and Science or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or
- (b) as to contravene any covenant or condition (other than a covenant or condition which was subsisting immediately before the date of the gift or lease to the Council)

PART VII
—cont.

subject to which a gift or lease of any land or building has been accepted by or granted to the Council without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

Disposal of
lost and
uncollected
property.

62.—(1) In this section—

the expression “lost property” means any property coming into the custody of the Council after being left on or in any premises occupied by the Council to which the public have access; and

the expression “uncollected property” means any property deposited in any cloakroom or parcels’ store provided by the Council for the use of the public or any containers deposited in any market storeroom provided by the Council in which there is exhibited a notice containing a statement to the effect of subsections (2) and (3) of this section.

(2) Where any lost or uncollected property is contained in a package, bag or other receptacle, the Council may cause such receptacle to be opened and the contents examined, if they deem it necessary to do so, for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

(3) If any lost or uncollected property within three months of coming into the custody of the Council be not proved to the reasonable satisfaction of the Council to belong to any claimant, it shall thereupon vest in the Council:

Provided that any lost or uncollected property which is of a perishable nature and any lost property the custody of which involves unreasonable expense or inconvenience may, notwithstanding that it has not vested in the Council under this section, be disposed of at such time and in such manner as the Council may think fit, and, if it is sold, the proceeds of sale shall vest in the Council at the expiration of three months from the date on which the property came into their custody.

(4) Where any lost property becomes vested in the Council in pursuance of this section, the Council may, if they think fit, deliver to the person, whether an employee of the Council or not, who placed the lost property in the custody of the Council, the whole or any part of such property or of the estimated value thereof in cash.

(5) This section shall, in the case of uncollected property placed in the custody of the Council on express terms inconsistent with the rights of the Council under this section, have effect subject to those terms.

63.—(1) The Council or a local authority may publish and sell or dispose of bulletins, journals, periodicals and leaflets and documents of historical or literary interest having a local connection or relating to the functions of the Council or the local authority, as the case may be. PART VII
—cont.
Publication of bulletins, etc.

(2) Nothing in this section shall affect the rights of any person under the law for the time being in force relating to copyright.

64.—(1) A parish council may provide prizes in connection with competitions for allotments or allotment gardens but shall not expend thereon more than twenty-five pounds in any one year or such higher amount as the Secretary of State may by order either specially or generally allow. Prizes for allotment competitions.

(2) Expenditure under this section shall not be treated as expenditure under the provisions of the Allotments Acts, 1908 to 1950, for the purposes of the limitations on expenditure provided for by section 16 of the Allotments Act, 1922, but shall be treated as expenditure under the provisions of the Allotments Acts, 1908 to 1950, for the purposes of section 15 of and the First Schedule to the Parish Councils Act, 1957. 1922 c. 51.
1957 c. 42.

65.—(1) A parish council may provide and maintain apparatus for the purpose of saving life on any river, lake or water to which the public have access and structures for the storage and safe keeping of any such apparatus. Provision of life-saving apparatus.

(2) A parish council may contribute towards the cost of the provision and maintenance of life-saving apparatus by any body or person and the services of persons in connection therewith and may combine with or contribute to the costs of any other parish council in the exercise of the powers of this section.

(3) The provisions of section 5 of the Parish Councils Act, 1957, shall apply to any apparatus or structure provided by a parish council on land which is not owned and occupied by the Council or is part of a highway or abuts on a highway as they apply to any apparatus provided under Part I of the said Act.

66. In its application to the county, section 115 of the Act of Appointment 1933 shall have effect as if for the words “ or sanitary inspector ” there were substituted the words “ public health inspector or other officer ”.

67.—(1) A local authority may make byelaws for regulating the tipping of spoil and refuse and for prohibiting the use of any spoil or refuse tip so as to be a nuisance to the occupiers of premises in the neighbourhood thereof. Tipping of spoil and refuse.

PART VII
—cont.

(2) Byelaws made by virtue of this section may—

- (a) contain provisions for imposing on persons offending against the byelaws fines not exceeding one hundred pounds for each offence and in the case of a continuing offence a daily fine not exceeding ten pounds;
- (b) provide that any spoil or refuse tip placed, kept or used in breach of the byelaws shall be a statutory nuisance for the purpose of Part III of the Act of 1936.

(3) No byelaw under this section shall extend to—

- (a) regulate or control the tipping of spoil or refuse by railway, canal or inland navigation undertakers for the purpose of constructing, widening, altering or maintaining any railway, canal, inland navigation, dock or wharf works; or
- (b) regulate or control the tipping of spoil or refuse by the Conservators of the river Thames in the exercise of their statutory powers.

(4) As respects byelaws made under this section, the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Secretary of State.

Council to be
a trust
corporation.

1925 c. 20.
1925 c. 18.
1925 c. 19.
1925 c. 23.
1925 c. 49.

68.—(1) Where property is to be held on trust for the sole benefit of a person or persons to whom this section applies, the Council shall have power to act as a trust corporation as respects that trust for the purposes of the Law of Property Act, 1925, the Settled Land Act, 1925, the Trustee Act, 1925, the Administration of Estates Act, 1925, and the Supreme Court of Judicature (Consolidation) Act, 1925.

1948 c. 29.

(2) This section applies to any child for the time being in the care of the Council under the provisions of any enactment and any person to whom paragraph (a) of subsection (1) of section 21 of the National Assistance Act, 1948, applies and for whom the Council are responsible for providing accommodation in accordance with that section or would be responsible if care and attention were not otherwise provided by the Secretary of State for Health and Social Security or by an organisation referred to in section 30 of the said Act of 1948.

Charges for
registration
of persons
seeking
exchange
of houses.
1957 c. 56.

69. Notwithstanding anything in any other enactment, a local authority may make reasonable charges in consideration of registering or undertaking to register or renew the registration of the name and requirements of any person seeking the exchange or transfer of a tenancy of a house provided by the local authority under Part V of the Housing Act, 1957.

70.—(1) The provisions of this Part of this Act mentioned in subsection (2) of this section shall apply to a local authority and for that purpose those provisions shall have effect as if for references therein to the Council there were substituted references to the local authority and subject to any other necessary modifications.

PART VII
—cont.

Application to certain authorities of provisions of Part VII.

(2) The provisions hereinbefore referred to are—

Section 53 (Authorisation of appearance of Council's officers in legal proceedings);

Section 55 (As to use of computer equipment of Council);

Section 56 (Microfilming of documents);

Section 60 (Power to change titles of officers);

Section 61 (Recreational and other facilities for employees);

Section 62 (Disposal of lost and uncollected property).

PART VIII

GENERAL

71.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of "department" in subsection (8) of that section shall include any Minister of the Crown having functions under this Act, as well as the Ministers therein mentioned.

(3) In this section "Minister of the Crown" has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946.

1946 c. 31.

72. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act (except section 54 (Provisions as to motor vehicles let for hire) thereof) by any person other than a party aggrieved or the Council or the local authority, as the case may be.

Restriction on right to prosecute.

73.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act, as it applies with respect to appeals to a magistrates' court under any enactment in that Act, and section 301 and section 302 of that Act shall apply accordingly.

Appeals.

(2) Where any requirement, refusal or other decision of the Council or the fire authority or a highway authority or local authority against which a right of appeal is conferred by this Act

PART VIII
—cont.

involves the execution of any work or the taking of any action then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Council, fire authority, highway authority or local authority, as the case may be, themselves execute the work or take the action.

Protection of
members and
officers from
personal
liability.
1875 c. 55.

74. Section 265 of the Public Health Act, 1875, shall apply to the Council and a local authority as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of the Council or of a local authority.

Crown rights.

75. Nothing in this Act shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing in this Act shall authorise the Council or any local authority to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners or belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of those commissioners on behalf of Her Majesty or, as the case may be, the consent in writing of that government department first had and obtained for that purpose.

Arbitration.

76. In arbitrations under section 77 (For protection of certain statutory undertakers) of this Act, the reference shall be to a single arbitrator to be appointed by agreement between the parties or, in default of agreement, to be appointed on the application of any party (after giving notice in writing to the other party or parties) by the President of the Institution of Civil Engineers.

For protection
of certain
statutory
undertakers.

77. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the authority and the undertakers, apply and have effect :—

(1) In this section, unless the subject or context otherwise requires—

“ apparatus ” means—

(a) electric lines and works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by the Central Electricity Generating Board or the Southern Electricity Board;

1882 c. 56.

(b) mains, pipes or other apparatus belonging to or maintained by the Gas Council, the North Thames Gas Board, the Southern Gas Board or the South Western Gas Board;

(c) any telegraphic line belonging to or used by the Post Office;

and includes any works for the lodging therein of apparatus;

“the authority” means the Council or a local authority, as the case may be;

“in” in a context referring to apparatus includes under, over, across, along or upon;

“the undertakers” means the Central Electricity Generating Board, the Gas Council, the North Thames Gas Board, the Post Office, the Southern Electricity Board, the Southern Gas Board, or any of them, as the case may be:

(2) Nothing in section 24 (Parts of buildings used for storage of flammable substances) of this Act shall apply to any building, or part of a building, by reason only that part of that building is used, or intended to be used, to contain a pressure governor, meter, booster or other apparatus for or in connection with the supply of gas:

(3) Nothing in the following sections of this Act shall relieve the authority or any person acting with the consent of the authority from liability for damage caused by them or him to any apparatus in the exercise of the powers of the said sections, and the said powers shall be so exercised as not to obstruct or render less convenient, so far as is reasonably practicable, the access to any apparatus or operational land:—

Section 13 (Extension of power to provide public conveniences);

Section 16 (Oil pipes and manholes in streets);

Section 59 (Power to provide car parks for certain purposes):

(4) No byelaw made under section 67 (Tipping of spoil and refuse) of this Act shall extend to regulate or control the tipping of spoil or refuse by the undertakers on operational land of the undertakers:

(5) (a) Any difference which may arise between the authority and the undertakers under this section (other than a difference as to the meaning or construction of this section) shall be determined by arbitration;

PART VIII
—cont.

(b) In determining any difference under this section, the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus, and may, if he thinks fit, require the authority to execute any temporary or other works so as to avoid, so far as may be reasonably possible, interference with any purpose for which the apparatus is used.

Application
of general
provisions of
Act of 1936.

78.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 2 to this Act shall have effect as if references therein to that Act included a reference to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of the said Schedule shall have effect as if references therein to that Act included a reference to section 19 (Oil-burning equipment), section 20 (Firemen's switches for luminous tube signs), section 21 (Building plans: access for fire brigade), section 22 (Provision of means of escape from fire in certain buildings), section 23 (Fire precautions in certain large buildings) and section 67 (Tipping of spoil and refuse) of this Act.

Saving for
exchange
control.
1947 c. 14.

79. It shall not be lawful to exercise the powers conferred by any of the provisions of this Act, except in compliance with the Exchange Control Act, 1947.

Costs of Act.

80. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act.

SCHEDULES

SCHEDULE 1

Section 44.

SETTING OUT THE TRUSTS, POWERS AND PROVISIONS UPON, WITH AND SUBJECT TO WHICH THE DESIGNATED SUM IS TO BE HELD IN PURSUANCE OF A DIRECTION GIVEN BY A CONTRIBUTOR UNDER SECTION 44 (POWER TO REQUIRE DESIGNATED SUM TO BE PAID TO TRUSTEES) OF THIS ACT.

The trustees shall stand possessed of the designated sum to which a contributor has directed that section 44 (Power to require designated sum to be paid to trustees) of this Act should apply and the income thereof upon the trusts and with and subject to the following powers and provisions, that is to say:—

1. During the period of twenty-one years from the death of the former contributor the trustees may pay or apply the designated sum and the income thereof or any part thereof respectively to or for the benefit of all or any one or more exclusively of the other or others of the following persons:—

- (a) the widow or widower of such former contributor;
- (b) the grandparents of such former contributor and the grandparents of the widow or widower of such former contributor and the grandparents of any previous or deceased wife or husband of such former contributor;
- (c) the issue of such former contributor;
- (d) any other issue of any of the grandparents referred to in sub-paragraph (b) of this paragraph; and
- (e) the person or persons (if any and whether of full age or not) to whom such former contributor has at any time put himself in loco parentis or of whose person or property such former contributor has at any time been guardian;

in such shares and in such manner as the trustees shall in their absolute discretion from time to time determine and so that the trustees may if they think fit pay any sum to the parent or guardian of any infant to be applied for the benefit of such infant without seeing to the application thereof.

2. In addition to the powers conferred on them by virtue of the foregoing paragraph 1, during the said period of twenty-one years the trustees may at any time pay or apply the designated sum and the income thereof or any part thereof respectively to or for the benefit of any person who in the opinion of the trustees was wholly or in part dependent on the earnings of such former contributor at his death in such manner as the trustees shall in their absolute discretion think fit.

3. Subject as aforesaid, the designated sum and the income thereof or so much thereof respectively as shall not have been paid or applied under the powers conferred by the foregoing provisions of this schedule shall be paid to such person or persons (other than the Crown, the Duchy of Lancaster or the Duke of Cornwall) as would at the death

SCH. 1
—cont.

1925 c. 23.

1952 c. 64.

of such former contributor have become entitled thereto under the Administration of Estates Act, 1925, as amended by the Intestates' Estates Act, 1952, or any statutory modification or re-enactment thereof in force at the death of such former contributor if such former contributor had died possessed thereof intestate and domiciled in England and solvent and so that such persons if more than one shall take in such shares and manner in which they would have taken under the provisions of the said Act or Acts and subject to the conditions therein contained.

4. In this schedule the expressions "grandparent" and "issue" shall be construed as if the stepchild, adopted child or illegitimate child of any person was that person's child, and "issue" includes issue in any degree.

SCHEDULE 2

Section 78.

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices, &c.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO SECTIONS 19, 20, 21, 22, 23 AND 67 OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act, 1925.

PRINTED IN ENGLAND BY THE OYEZ PRESS

PRINT DIVISION OF THE SOLICITORS' LAW STATIONERY SOCIETY, LTD.

FOR C. H. BAYLIS, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament.